

MUTUAL NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of August 19, 2026 ("Effective Date"), by and between:

1. NovaTech Solutions Inc. ("Disclosing Party"), a Delaware Corporation, and
2. Apex Digital Enterprises ("Receiving Party"), a California Corporation.

RECITALS

WHEREAS, the parties wish to explore a potential strategic joint venture concerning multimodal artificial intelligence and enterprise data processing; and

WHEREAS, in connection with such discussions, either party may disclose confidential and proprietary information to the other.

1. DEFINITIONS AND SCOPE

"Confidential Information" means all non-public, confidential, or proprietary information, including but not limited to trade secrets, source code, neural network model weights, product roadmaps, customer lists, and financial projections.

2. OBLIGATIONS OF RECEIVING PARTY

The Receiving Party agrees:

- (a) To maintain the strict confidentiality of the Disclosing Party's Confidential Information;
- (b) Not to disclose any Confidential Information to any third party without prior written consent;
- (c) To restrict access to its employees, contractors, and legal counsel on a strict "need-to-know" basis.

3. EXCLUSIONS

Confidential Information does not include information that: (i) is or becomes publicly known through no breach of this Agreement; (ii) was already in the rightful possession of Receiving Party prior to disclosure.

4. REMEDIES AND LIQUIDATED DAMAGES

- (a) The parties acknowledge that any unauthorized disclosure or breach of Section 2 will cause irreparable harm.
- (b) Liquidated Damages: In the event of a willful or material breach of confidentiality, the breaching party shall be liable for liquidated damages in the amount of \$250,000 USD per incident, in addition to reasonable attorney fees and injunctive relief.

5. KEY MILESTONES AND DATES

- Effective Date: August 19, 2026
- Initial Information Exchange Deadline: August 28, 2026
- Technical Feasibility Review: September 15, 2026
- Agreement Expiration Date: August 19, 2028 (2-year term)

6. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to conflicts of law principles.

7. SIGNATURES AND EXECUTION

All authorized signatories must execute this Agreement prior to August 25, 2026.

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their duly authorized representatives.

NOVATECH SOLUTIONS INC.

APEX DIGITAL ENTERPRISES

By: _____

By: _____

Name: Dr. Eleanor Vance

Name: Marcus Sterling

Title: Chief Executive Officer

Title: Managing Director

Date: August 19, 2026

Date: August 19, 2026